

money will be paid as arrears. The list of 1,686 recipients is not complete, as "continuous scrutiny of other pension seekers is in process". According to Modi, it can go up to 5,000, amounting to an annual recurring expenditure of Rs 15-20 crore.

Beyond the value part, the scheme to "felicitate the forgotten heroes" will obviously struggle to confine benefits to the targeted group because many prisons across the state have not retained the 35-year-old records to verify whether a person was in judicial custody or not. The screening of the applications is being

Secretary (Home) Amir Subhani says that the process of procuring details from jails, besides the verification exercise, is on. The authorities of some jails in Bihar are yet to provide details while documents from Jharkhand were also awaited, said sources.

In the absence of prison records, it is getting difficult to ascertain whether a former prisoner had a criminal record or was arrested for a socio-political activity. Many termite-eaten documents related to the movement were destroyed by government officials years ago.

But these are not the only road-

The state Government's decision to provide non-contributory pension to JP activists, however, is not one of its kind. In June 2008, the Madhya Pradesh Government had announced a similar offer named Loknayak Jayaprakash Samman Nidhi. However, unlike Madhya Pradesh where Chief Minister Shivraj Singh Chouhan preferred to wear his MISA-detainee status on his sleeve and applied for the pension scheme, no big-time politician in Bihar has staked claim to the pension.

Though it is difficult to draw parallels between the two decisions,



NITISH AND MODI WITH SOME APPLICANTS

THE STATE GOVERNMENT WILL HAVE TO SHELL OUT RS 15 CRORE ANNUALLY TO RECIPIENTS OF THE PENSION SCHEME.

done largely by the state Home Department, as a committee constituted to this effect under nonagenarian JP follower Rammurti has remained a non-starter.

The state Government is flooded with claims from aspiring pensioners. It is also attempting to procure records from Jharkhand jails, as a good number of the activists were lodged there during the undivided Bihar days. But the neighbouring state have shown little alacrity in procuring the three-decade-old prison records for Bihar.

"It's true that all JP Movement records are not with us. However, we are following certain parameters to pick those who are eligible for pension," Modi said. Bihar's Principal

block the Nitish Government is faced with when it comes to "felicitating the faithful". A petitioner, Ravishankar Akela, has approached Patna High Court to challenge the Government's move of giving pension to the activists of the JP Movement. According to petitioner's lawyer K.K. Singh, the issue raises pertinent questions like whether granting pension from the public exchequer to a political group of people is justified. Beyond the usual questions about motive and authority of a political party to grant pension to people who subscribe its political ideology, Singh has also raised a legal point: whether the act of rewarding people detained under MISA is legally sustainable.

Chouhan's Government had announced the pension scheme in 2008, just a year before the Assembly polls in Madhya Pradesh. Nitish's Government, which goes to Assembly polls this year, announced the scheme in 2009.

The Bihar Government's plan has sparked off a political debate, with the Congress taking the lead in questioning the rationale behind "benefiting political activists with public money". Bihar Pradesh Congress President Anil Kumar Sharma says it is tantamount to squandering taxpayer money for political goals. "This is cynical populism to boost the Government's approval ratings and will set a bad precedent," he says. Nitish doesn't seem to think so. ■